

VENCI00509700 Las Posas Valley Water Rights Coalition, et al., v. Fox Canyon Groundwater Management Agency, et al.

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-05-27

Motion: Motion of Eco-Farm, LLC, for Leave to Intervene

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Hearing Date / Time

Wed, 05/27/2026 - 10:00

Nature of Proceedings

Motion of Eco-Farm, LLC, for Leave to Intervene

Tentative Ruling

For Plaintiffs Las Posas Basin Water Rights Coalition, et al.: Meredith E. Nikkel, Brian E. Hamilton, Jake R. Voorhees, Downey Brand LLP

For Moving Party Eco-Farm, LLC: Michael L. Tidus, Gregory R. Regier, Jackson Tidus

RULING

For the reasons as set forth herein, the motion of Eco-Farm, LLC, for leave to intervene is granted. Eco-Farm, LLC, shall file and serve its complaint in intervention, in substantially the same form as attached the motion, on or before June 10, 2026. Upon filing, the complaint is deemed answered by all parties to this action, with all material allegations denied and all

applicable affirmative defenses asserted.

Background

On July 10, 2023, the Court entered final judgment (the Judgment) in this comprehensive groundwater adjudication. This judgment was affirmed by the Court of Appeal, and a petition for review is now pending before the California Supreme Court. (Las Posas Valley Water Rights Coalition v. Ventura County Waterworks Dist. No. 1 (2026) 118 Cal.App.5th 1170, petn. for review pending, petn. filed Apr. 14, 2026.)

On September 26, 2024, several parties identifying themselves as “Omitted Rights Holders” filed a motion to intervene in this action. These parties asserted, among other things, that their notice of this action was legally insufficient. On December 18, 2024, the Court granted the motion of these parties to intervene to assert, among other things, their claims regarding notice.

On April 10, 2025, following a two-day evidentiary hearing, the Court issued its tentative statement of decision finding, among other things, the notice provided to the Omitted Rights Holders legally sufficient and against the Omitted Rights Holders on their substantive claims to modify the comprehensive groundwater adjudication judgment. On June 2, 2025, the Court entered its judgment on its decision. This judgment is now pending appeal.

On March 18, 2026, Eco-Farm, LLC, (Eco-Farm) filed its motion to intervene in this action. Eco-Farm argues, among other things, that the notice it was provided was legally insufficient. The motion is opposed by Plaintiffs.

On May 15, 2026, the Court held a case management conference in this matter. After a discussion was held as to whether hearing on the motion to intervene should be stayed pending disposition of the appeal as to the judgment against the Omitted Rights Holders, the Court determined to keep the motion on calendar.

Analysis

Eco-Farm makes this motion to intervene pursuant to Code of Civil Procedure sections 387 and 837.

“An intervention takes place when a nonparty, deemed an intervenor, becomes a party to an action or proceeding between other persons by doing any of the following:

“(1) Joining a Plaintiff in claiming what is sought by the complaint.

“(2) Uniting with a Defendant in resisting the claims of a Plaintiff.

“(3) Demanding anything adverse to both a Plaintiff and a Defendant.” (Code Civ. Proc., § 387, subd. (b).)

“A nonparty shall petition the Court for leave to intervene by noticed motion or ex parte application. The petition shall include a copy of the proposed complaint in intervention or answer in intervention and set forth the grounds upon which intervention rests.” (Code Civ. Proc., § 387, subd. (c).)

“(1) The Court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied:

“(A) A provision of law confers an unconditional right to intervene.

“(B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties.

“(2) The Court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both.” (Code Civ. Proc., § 387, subd. (d).)

“A groundwater sustainability agency for the basin or a portion of the basin may intervene in a comprehensive adjudication conducted pursuant to this chapter.” Code Civ. Proc., § 837, subd. (a).)

“The Court shall allow any person to intervene in a comprehensive adjudication conducted pursuant to this chapter upon an ex parte application that demonstrates that the person holds fee simple ownership in a parcel in the basin, or extracts or stores water in the basin. A person filing an ex parte application pursuant to this subdivision shall give notice to the Plaintiff consistent with the California Rules of Court.” (Code Civ. Proc., § 837, subd. (c).)

“A person may apply to intervene in a comprehensive adjudication conducted pursuant to this chapter pursuant to Section 387.” (Code Civ. Proc., § 837, subd. (d).)

Eco-Farm presents evidence that it is an owner of fee simple title to real property overlaying the Los Posas Valley Groundwater Basin on which property water is extracted for agricultural use. (Estiri & Fiuzat decl., ¶¶ 1, 3.) There is no factual dispute as to this issue presented in this motion.

Instead, Eco-Farm's motion and Plaintiffs' opposition focus instead upon the timeliness of the motion because it is post-judgment and upon Eco-Farm's asserted lack of effective notice of this action.

On the issue of timeliness, there are two issues: whether the request is untimely because a judgment on the merits of the adjudication has been issued; and whether the request is untimely because of issues of notice and delay.

Section 837 does not address timing of the application to intervene. Section 387, subdivision (d), requires a timely application even where there is an unconditional right to intervene. Section 837's procedures must be interpreted consistently with the statutory directives of comprehensive groundwater adjudications. (Code Civ. Proc., § 830, subd. (b).) Other provisions applicable to civil action apply to this action where they are not conflicting. (Id., subd. (c).) “The fact that section 387 allows for a ‘timely’ application means that intervention after a judgment is possible.” (Hernandez v. Restoration Hardware, Inc. (2018) 4 Cal.5th 260, 267.)

The Court concludes that the fact that the application is made after judgment is not an impediment to intervention here. “The Court shall have continuing jurisdiction to modify or amend a final judgment in a comprehensive adjudication in response to new information, changed circumstances, the interests of justice, or to ensure that the criteria of subdivision (a) of Section 850 are met.” (Code Civ. Proc., § 852.) Moreover, the judgment entered in this action itself permits amendment by landowners and other parties claiming rights in the Basin. (Judgment, § 9.4.)

“ ‘Timeliness [under section 387] is determined by the totality of the circumstances facing would-be intervenors, with a focus on three primary factors: “(1) the stage of the proceeding at which an applicant seeks to intervene; (2) the prejudice to other parties; and (3) the reason for the delay.” ’ [Citation.] ‘ “[D]elay in itself does not make a request for intervention untimely.” ’ [Citation.] When mandatory intervention ‘is sought, because “the would-be intervenor may be seriously harmed if intervention is denied, Courts should be reluctant to dismiss such a request for intervention as untimely, even though they might deny the

request if the intervention were merely permissive.” ‘ [Citation.]’ (Crestwood Behavioral Health, Inc. v. Lacy (2021) 70 Cal.App.5th 560, 574 (Crestwood).)

“Although the totality of the circumstances should be considered, ‘prejudice to existing parties is “the most important consideration in deciding whether a motion for intervention is timely.” ‘ [Citation.] This does not, however, include prejudice that would result from allowing intervention. [Citation.] Rather, only the ‘ “prejudice caused by the movant’s delay” ‘ should be considered. [Citation.] Indeed, California Courts have found intervention to be timely based solely on the absence of such prejudice. [Citations.]” (Crestwood, *supra*, 70 Cal.App.5th at pp. 574–575.)

The stage of the proceeding issue is not as significant an issue in this case as it may be in most cases. The implementation of the judgment is expected to be a continuing matter, subject to modification as appropriate under section 852. Regardless of whether Eco-Farm’s present circumstances warrant any modification to the judgment, Eco-Farm has a continuing interest in this matter as reflected in section 837. This factor weighs in favor of finding timeliness.

The issues of prejudice and delay are wholly wrapped in the merits of Eco-Farm’s claim that it was not given legally sufficient notice and its delay as based upon the lack of such notice. Granting the motion to intervene merely provides Eco-Farm standing to assert its claims. Denying the motion to intervene would effectively determine the claims on their merits. Under the totality of the circumstances here, particularly where Eco-Farm has a continuing interest in the implementation of the judgment, the better practice is to permit Eco-Farm to intervene and then to address Eco-Farm’s notice claims by a procedurally appropriate vehicle.

The motion to intervene will therefore be granted. By granting the motion, the Court expresses no opinion on the merits of Eco-Farm’s claims.

Judges

Judge Thomas Anderle

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